
Appeal Decision

Site visit made on 9 July 2026

by J Parsons MSc BSc(Hons) DipTP Cert(Urb) MRTPI

an Inspector appointed by the Secretary of State

Decision date: 20th August 2026

Appeal Ref: 6003947

Land south east of Kildale, Maidstone Road, Headcorn, Maidstone, Kent TN27 9PT

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Ackleton against the decision of Maidstone Borough Council.
 - The application Ref is 25/504705/FULL.
 - The development is a change of use of land to 1no plot residential Gypsy site to include fencing, hardstanding, cesspit and soft landscaping.
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Decision

1. The appeal is dismissed.

Preliminary matters

2. For the purposes of the application, it has been treated as retrospective because the operational aspects of the development, the hardstanding and access, have been built. Within the development description, the word retrospective has been removed because it does not describe the physical nature of the scheme. Main parties have confirmed that the applicant is a Gypsy falling within the definition of the latest revised Planning Policy for Travellers and Showpeople (PPTS). There is no evidence to dispute this finding.
3. The revised National Planning Policy Framework has recently been published and adopted superseding the previous version. It has been taken into account in this decision. There has been no requirement to re-consult parties as the changes to the Framework do not materially affect this decision.

Main issue

4. The effect of the development's use of an access on the safety of pedestrians, cyclists and drivers using Maidstone Road(A274).

Reasons

Highway Safety

5. The appeal site comprises land to the side of the A274 and has an existing access. Previously, it has been indicated that the site was used as a horse paddock/donkey sanctuary. Policy LPRSP15 of the Local Plan Review (LPR) 2024 states that the proposal should safely accommodate the vehicular and pedestrian movement on the local highway network. LPR Policy LPRTRA2 requires schemes to demonstrate that the impacts of trips generated to and from the development are accommodated, remedied or mitigated to prevent severe residual highway safety or capacity

impacts. LPR Policy LPRHOUS8 states planning permission will be granted for Gypsy sites provided certain criteria are met. This includes that the site can be safely accessed to and from the highway by all vehicles on a regular basis.

6. The appellant has detailed that rescue donkeys (varying in number) and 1 horse have been sheltered on the site during the most recent 18 month period. They have been fed twice a day and have also been provided with fresh water once a day. Additionally, there has been transportation of animals to/from the site, veterinary visits and delivery of hay. As a result, it has been estimated that there would have been at least 6 vehicle movements per day, with vehicles towing horseboxes and large delivery vehicles for the day.
7. The development comprises a static caravan, a touring caravan and a dayroom which accommodates a single family, including 2 children. One of the children attends a local primary school whilst the other is too young to do so. In the absence of any directly comparable trip rate information for Gypsy and Traveller sites, a proxy of private mixed private housing has been used to indicate 4.19 trips daily which has been rounded up to 5 trips daily. On this basis, a straight comparison of the previous and existing use (as a Gypsy and Traveller site) would indicate a small reduction overall. Additionally, there have been no significant recorded accident incidents of any notable injury severity within the last 10 years. There was an accident at the entrance to the nearby golf course recorded but this was recorded as slight. A significant number of vehicle accesses onto the A274 have poor visibility.
8. However, County Highways has raised objection given the likelihood of the development resulting in the intensification in use of an access with a sub-standard visibility. Visibility in one direction is about 215 metres but the visibility in the other direction is poor despite some recent cutting back of vegetation. In order to exit the site in this other direction, vehicles would also have to cross one lane of the carriageway, with traffic travelling the opposite way. The poor visibility has particular importance given the strategic and relatively high speed nature of the A274, with a speed limit is 60mph.
9. Based on the appellant's highway information, there are issues about the level of previous vehicular trips. In terms of daily vehicle trips, it is reasonable to assume that the provision of water to the animals could take place at the same time as feeding them. The visit frequency of the transportation of animals, veterinary visits and delivery of hay has also not been detailed. The vehicular trip information would suggest this is happening daily, but the appellant's appeal statement does not suggest. It indicates such vehicle movements are generated on a frequent but more irregular basis. In absence of any detailed justification, daily vehicle movements for these purposes would appear excessive.
10. The previous use generated vehicles towing horseboxes and large hay delivery vehicles and the residential use generates light vehicles. The movement of the touring caravan in and out of the site would be infrequent and stated to be at a lower frequency than large vehicles associated with the transportation of animals and hay. However, in the absence of any detailed justification for traffic movements associated with the horse/donkey sanctuary use, this argument in favour has little merit.

11. Drawing all these considerations together, there is an unacceptable impact on the highway safety of road users of the A274, having regard to visibility and conflict with Policies LPRSP15, LPRH0U8 and LPRTRA2 of the LPR.

Other matters

Unmet need

12. The Planning Policy for Traveller Sites (PPTS) requires local planning authorities to identify and update annually a supply of specific deliverable sites sufficient to provide 5 years' worth of sites against locally set targets and identify a supply of specific developable sites. The Council cannot demonstrate a 5 year supply for Gypsy and Traveller sites. It chose to separate the matter of Gypsy and Traveller policy from LPR by preparing and adopting a separate Development Plan Document but this preparation is at an early stage, with the preferred sites consultation carried out late 2025, and so attracts little weight in addressing shortfall. As such, the need for Gypsy and Traveller sites attracts considerable weight.

Personal circumstances

13. The appeal site is currently occupied by the appellant and his family, who have suffered violence from a previous place of stay. The family could have to live in temporary accommodation on the roadside and the children's welfare would be seriously disrupted, if the appeal is dismissed. The occupants would have the protected characteristics of race under s149(7) of the Equality Act 2010. The scheme meets the needs of those persons with a protected characteristic, by reason of race, and so, as required by section 149(1) of the Equality Act 2010, the public sector equality duty is applicable.
14. There is a need to have regard to eliminating discrimination, advancing equality of opportunity and fostering good relations. The appeal scheme would support the traditional way of life of a family that have a protected characteristic and facilitate the establishment of a settled base for the appellant's family whilst they continued to pursue a nomadic lifestyle for economic purposes. Notwithstanding the best interests of children, I attach moderate weight to other personal circumstances as a consideration in favour of the scheme.

Best interests of children

15. Article 3 of the United Nations Convention on the Rights of the Child requires a child's best interests to be a primary consideration. Although a primary consideration, the best interests of a child are not a determining planning consideration, but no consideration must initially be regarded as more important or, in advance of the subsequent assessment of the individual circumstances, be given greater weight.
16. Accordingly, decision-makers need to consider whether children's best interests are relevant to any planning issue under consideration. In doing so, it similarly advises that they will need to ensure the approach is proportionate. Decision-makers need to consider the case before them, and need to be mindful that the best interests of a particular child will not always outweigh other considerations including those that impact negatively on the environment or the wider community.

17. The appeal scheme provides a settled base for 2 children, and this would be in their best interests. One of the children goes to a local school at Kingswood. An uncertain roadside existence would not support the children's welfare and development. Instead, an enduring settled base would enable access to education, healthcare and generally supporting children's welfare, by for example, attending clubs and making friends.
18. The best interests of the children, would, in principle, be served by a permanent and secure home, having regard to the fact that educational needs are served in the local area for one child and could potentially be served by the other child attending the same school in the future. The best interests of the children are afforded considerable importance and weight.

Other benefits

19. A number of representations comment on the opportunity to improve the appearance of the site within a landscaped setting. There could be opportunities to ensure an acceptable appearance to the site but, as this would be a requirement of any permission, only limited weight is given to such a consideration.

Development plan and planning balance.

20. The LPR Policy LPRSS1 sets out the Council's Spatial Strategy which includes a clear locational hierarchy directing development to Maidstone Urban Area, followed by other defined settlement areas and specific site allocations, and gives protection to the rural character of the area. The appeal site falls within identified countryside as identified in the LPR Policy LPRSP9 where development should not be permitted where it does not accord with other policies. LPR Policy LPRHOU8 accepts that gypsy and traveller accommodation will be in the countryside, and main parties accept that the scheme meet its criteria relating to the Gypsy and Traveller status of the appellant, accessibility to services and facilities, character and appearance, flooding risk and ecological assessment.
21. However, LPRHOU8 also requires that site to be safely accessed to and from the highway by all vehicles. For the reasons indicated, there is an unacceptable impact on the highway safety for road users of the A274, having regard to increased use of the access, in the absence of clear evidence to the contrary, and poor visibility. For all these reasons, there would be conflict with LPR Policy LPRHOU8, as well as LPR Policies LPRSP15 and LPRTRA2. Such policy conflicts are central to the consideration of the scheme in relation to the LPR and there would be conflict with the development plan taken as a whole.
22. The Council are unable to meet the accommodation needs of the appellant and there is a lack of availability of deliverable alternative sites. The appeal scheme would result in a settled base for the appellant and his family, with access to education, healthcare and other services. It would support a nomadic lifestyle and a traditional way of life for an appellant and family with a protected characteristic. This would allow cultural traditions to be balanced with the practicalities of modern living thereby advancing equality of opportunity. The unmet need for a pitch also indicates inequality in housing opportunities and the proposal would offset this in a modest way.
23. These are important points in achieving the social sustainability sought by paragraph 13 of the PPTS. The equality implications of PSED weigh in favour of

permitting a pitch at the appeal site because dismissing the appeal would perpetuate the disadvantages currently endured.

24. However, these benefits are not great enough to outweigh the harm arising from highway safety which is overriding given the danger to human life. Such harm would be substantial for the reasons indicated.
25. Having regard to Article 8 (1) and Article 1 of the First Protocol, there would be interference with the occupier's rights in respect of private and family life, and the protection of a home. However, these Articles are qualified rights. Article 8(2) states that there shall be no interference by a public authority with the exercise of this right 8(1)] except such as is in accordance with the law and is necessary in a democratic society in the interests of national security, public safety or the economic well-being of the country, for the prevention of disorder or crime, for the protection of health or morals, or for the protection of the rights and freedoms of others. In terms of public safety, the risk to life and limb is a decisive consideration given the poor visibility and unacceptable impact of highway safety. Given this, dismissing the appeal would be a proportionate response in all the circumstances and interference is justified under Article 8 and Article 1 of the First Protocol.
26. In accordance with PSED, due regard has been paid to minimising the disadvantages suffered by the appellant as a person without a permanent home. These considerations have been at the forefront of the decision-making process, but they would not outweigh the harm identified which provide a strong reason for refusing the development. In conclusion, there would be conflict with the development plan, taken as a whole, and there would be no material considerations that indicate that the scheme should be determined other than in accordance with the development plan and permanent planning permission should be refused.

Temporary planning permission

27. In considering a temporary planning permission as an alternative, the actual consequences of the development would be short term and therefore the identified harm to the highway safety of users would be temporary in nature due to the time limited duration of the proposal being in place. However, even for a temporary period of time, development considerations of unmet need, personal circumstances, Human Rights and PSED would not be so weighty as to clearly outweigh the harm that I have identified.

Other matters

28. There are representations in favour of the scheme, but every scheme has to be considered on its particular planning merits. For the reasons indicated, the unacceptable impact on highway safety is overriding.

Conclusion

29. For the reasons set out above and having regard to all other matters raised, I conclude that the appeal should be dismissed.

J Parsons

INSPECTOR